Constitutional Design

The big idea

A **constitution** is a written set of rules that are accepted by all people living together in a country. It is the supreme law that decides the relationship between the people and the government. This chapter looks at how South Africa and India wrote their constitutions after long struggles, and at the values that guide India's Constitution.

WHAT A CONSTITUTION DOES

(1) Generates a degree of **trust and coordination** among different groups. (2) Specifies **how the government will be constituted** and who has power to take which decisions. (3) Lays down **limits on the powers** of government and states the rights of citizens. (4) Expresses the **aspirations** of the people about creating a good society.

Democratic constitution in South Africa

Apartheid was the name of a system of racial discrimination unique to South Africa, imposed by white Europeans. The native people (**blacks**, about three-fourths of the population), people of mixed races (**coloured**) and people of **Indian** origin were discriminated against. Non-whites had no voting rights; they had separate trains, buses, hospitals, schools, beaches, even churches and cemeteries.

Struggle: From 1950, blacks, coloured and Indians fought against apartheid, led by the **African National Congress (ANC)**. **Nelson Mandela** and seven others were sentenced to **life imprisonment in 1964** for daring to oppose apartheid; he spent **28 years** in South Africa's most dreaded prison, **Robben Island**.

Towards a new constitution: Protests and international pressure made the white government change its policies. Discriminatory laws were repealed, the ban on political parties lifted and Mandela freed in **February 1990**. At midnight of **26 April 1994** the new national flag was unfurled, and South Africa became a democracy. Mandela became the first President. The black leaders appealed for forgiveness; the whites agreed to majority rule and one person one vote, and the black majority agreed that whites' property would not be taken away. After two years of discussion, the country got a constitution that gave its citizens the most extensive rights available in any country. Its Preamble promises to heal past divisions.

Making of the Indian Constitution

Challenges faced:

- India was born through the **Partition** on the basis of religious differences; at least ten lakh people were killed in violence.
- The British had left it to the rulers of **princely states** to decide whether to merge with India, Pakistan or remain independent. Merger was difficult.
- The future was uncertain: India was a huge and diverse country, and poverty was widespread.

The path to the Constitution:

- In **1928**, **Motilal Nehru** and eight other Congress leaders drafted a constitution (Nehru Report).
- In **1931**, the **Karachi session** of the Indian National Congress passed a resolution on how independent India's constitution should look: universal adult franchise, right to freedom and equality, protecting minority rights.
- The **Government of India Act, 1935** and experience of working legislatures from 1937 helped.
- Ideals of the **French Revolution**, parliamentary democracy in Britain, the **Bill of Rights in the US**, and the **socialist revolution in Russia** inspired leaders.

The Constituent Assembly: the body of elected representatives that wrote the Constitution. Elections were held in **July 1946**; its first meeting was in **December 1946**. After Partition, it had **299 members**. **Dr. Rajendra Prasad** was its President and **Dr. B.R. Ambedkar** was Chairman of the **Drafting Committee**. The Assembly **adopted the Constitution on 26 November 1949** and it came into effect on **26 January 1950** (we celebrate Republic Day). It met for **114 days** spread over **three years**, and every document of its proceedings is recorded in the **Constituent Assembly Debates**.

Why do we accept a constitution made so long ago? (1) It expresses a broad consensus of its time and has been accepted by people of all parties. (2) The Assembly represented the people of India; it had members from all regions, languages, castes, classes, religions and occupations. (3) It worked in a systematic, open and consensual manner.

Guiding values of the Indian Constitution

The values that inspired the freedom struggle are written in the **Preamble**. The Preamble draws inspiration from the American model.

- **Mahatma Gandhi** in *Young India* (1931) dreamt of an India where the poorest feel it is their country, with no high and low classes, no untouchability, and equal rights for women.
- **Dr. Ambedkar** spoke of the contradiction of entering "a life of contradictions" on 26 January 1950: political equality but social and economic inequality.
- **Jawaharlal Nehru**'s speech "**Tryst with Destiny**" (14–15 August 1947, midnight) spoke of the service of millions who suffer, and wiping every tear from every eye.

Key words of the Preamble:

Term	Meaning
We, the people of India	The Constitution is drawn up by the people through their representatives

Term	Meaning
Sovereign	People have the supreme right to make decisions on internal and external matters; no external power can dictate
Socialist	Wealth is generated socially and should be shared equally; government should reduce inequalities
Secular	Citizens have complete freedom to follow any religion; no official religion; government treats all religions equally
Democratic	People enjoy equal political rights, elect their rulers and hold them accountable
Republic	The head of the state is an **elected** person, not a hereditary position
Justice	Citizens cannot be discriminated against on grounds of caste, religion and gender; social, economic and political
Liberty	No unreasonable restrictions on what citizens think, how they express and act
Equality	All are equal before law; equal opportunities
Fraternity	All of us should behave as if we are members of the same family

Institutional design: the Constitution lays down procedures for choosing rulers, defines who has how much power, puts limits on government and states citizens' rights. It is a long and detailed document, so it needs to be **amended** regularly; changes are called **constitutional amendments**. It has about 395 articles in its original form.

ADOPTED VS CAME INTO FORCE

The Constitution was **adopted on 26 November 1949** (now observed as Constitution Day) and **came into force on 26 January 1950** (Republic Day).

BOARD FAVOURITE

"What were the main challenges faced by the makers of the Indian Constitution?" and "Explain the meaning of sovereign, socialist, secular, democratic republic" are frequently asked.

Quick recap

- Constitution: supreme law, builds trust, defines government, limits power, states aspirations.
- South Africa: apartheid, ANC, Mandela (28 years in Robben Island), democracy on 26 April 1994.
- India: Constituent Assembly, 299 members, Rajendra Prasad (President), Ambedkar (Drafting Committee), adopted 26 Nov 1949, in force 26 Jan 1950.
- Preamble: sovereign, socialist, secular, democratic republic; justice, liberty, equality, fraternity.

Practice questions

1. Who was the Chairman of the Drafting Committee of the Indian Constitution?
   (a) Dr. Rajendra Prasad (b) Jawaharlal Nehru (c) Dr. B.R. Ambedkar (d) Sardar Patel
2. The Indian Constitution came into effect on
   (a) 15 August 1947 (b) 26 November 1949 (c) 26 January 1950 (d) 26 January 1949
3. Nelson Mandela was imprisoned on
   (a) Robben Island (b) Alcatraz (c) Andaman Island (d) St Helena
4. The word "Republic" in the Preamble means
   (a) People have supreme power to decide internal and external matters (b) There is no official religion (c) The head of the state is an elected person and not a hereditary one (d) Wealth is shared equally
5. In 1931, the resolution on what independent India's constitution should look like was passed at the Congress session in
   (a) Lahore (b) Bombay (c) Lucknow (d) Karachi
6. South Africa became a democracy when its new flag was unfurled on
   (a) 15 August 1947 (b) 11 February 1990 (c) 26 April 1994 (d) 10 May 1996
7. How many members did the Constituent Assembly have after Partition?
   (a) 389 (b) 299 (c) 545 (d) 250
8. Why do we accept the Constitution made by the Constituent Assembly more than seventy years ago?
9. What were the main challenges before the makers of the Indian Constitution? Explain any two values in the Preamble.

Answers: 1. c 2. c 3. a 4. c 5. d 6. c 7. b 8. see notes 9. see notes